

6.—(1) If the Parliament of Northern Ireland pass an Act similar to the provisions of this Act, Article 21 of the Convention contained in the First Schedule to the Carriage by Air Act, 1932, shall have effect as respects courts in Northern Ireland, subject to the provisions of the said Act of the Parliament of Northern Ireland. Provisions as to Northern Ireland.

(2) This Act, except the provisions of the last foregoing subsection, shall not extend to Northern Ireland.

7. This Act may be cited as the Law Reform (Contributory Negligence) Act, 1945. Short title and extent.

CHAPTER 29.

Liabilities (War-Time Adjustment) (Scotland) Act, 1945.

ARRANGEMENT OF SECTIONS.

Section.

1. Application for adjustment of debtor's affairs.
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An Act to provide for the arrangement or the adjustment and settlement of the affairs of persons in Scotland financially affected by war circumstances.

[15th June 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and

Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Application
for adjust-
ment of
debtor's
affairs.

1.—(1) An application may be made to the court for the adjustment and settlement under this Act of the affairs of any person on the ground that, owing to war circumstances—

(a) he is unable to pay his debts or will be unable, after payment of his debts (if any), to meet as they fall due any future liabilities in respect of obligations already incurred ; or

(b) he is in such a position that if he were required to pay his debts and to meet, as they fall due, any such future liabilities as aforesaid, he would not have sufficient resources to enable him to preserve or recover his business or former means of livelihood or otherwise to make reasonable provision for the future maintenance of himself and his family.

(2) An application under this section may be made—

(a) by the debtor ; or

(b) in a case where the debtor has been granted and is still enjoying relief under section one of the Courts (Emergency Powers) (Scotland) Act, 1939, as amended by section one of the Courts (Emergency Powers) (Scotland) Act, 1944, by the debtor or by any creditor who has a debt which would be a provable debt.

(3) An application under this section by the debtor shall include a statement of the grounds on which he claims to be entitled to the benefit of this Act, and shall be accompanied by a state of his affairs, specifying his whole property wherever situated, the property in expectancy or to which he may have an eventual right, the names and designations of his creditors and debtors and the debts due by or to him, and a rental of his heritable property.

Proceedings in
applications
for
adjustment.

2.—(1) On any application to the court under this Act, the court may remit to a person (hereinafter referred to as a trustee) selected by the court from the panel appointed for the purpose by the Secretary of State for a report—

(a) whether the debtor is a person to whom, owing to war circumstances, paragraph (a) or paragraph (b) of subsection (1) of section one of this Act applies ; and

(b) whether and in what manner having regard to the circumstances of the debtor generally and in particular to the existence of any debts precluding him from continuing, commencing or re-commencing business, the case ought to be dealt with under this Act.

2 & 3 Geo. 6.
c. 113.
7 & 8 Geo. 6.
c. 6.

(2) On a remit under the last foregoing subsection—

(a) the trustee, if he is of opinion that the debtor is not such a person as is mentioned in paragraph (a) of the last foregoing subsection or that the case ought not to be dealt with under this Act, shall report to that effect to the court ;

(b) the trustee, if he is of opinion that the debtor is such a person as aforesaid and that the case ought to be dealt with under this Act,

(i) shall, in the first place, try to secure, by negotiation with the debtor and the creditors, the assent of all the parties to an arrangement for the settlement of the debtor's affairs, and if such assent is obtained, shall report the arrangement to the court ;

(ii) shall, if no such assent is obtained, prepare a scheme (hereinafter referred to as an adjustment scheme) for the adjustment and settlement of the debtor's affairs under this Act and report the same to the court.

(3) Where the trustee reports an arrangement to the court under sub-paragraph (i) of paragraph (b) of the last foregoing subsection, the court, if satisfied that the debtor is such a person as is mentioned in paragraph (a) of subsection (1) of this section, that the case ought to be dealt with under this Act, and that the assent of all the parties has been obtained to the arrangement, may, after giving any person appearing to the court to be interested an opportunity of being heard, approve the arrangement, and thereupon it shall be binding on the debtor and on all the creditors whose assent has been so obtained.

(4) Where the trustee reports to the court to the effect mentioned in paragraph (a) or sub-paragraph (ii) of paragraph (b) of subsection (2) of this section, the court shall take such report into consideration, together with any adjustment scheme submitted with such report, and may, after giving any person appearing to it to be interested an opportunity of being heard, make such of the following orders as it shall think appropriate in the circumstances—

(a) an order approving with or without modifications the adjustment scheme submitted by the trustee ;

(b) an order disapproving the adjustment scheme submitted by the trustee and remitting to the same or another trustee to prepare a new adjustment scheme ;

(c) an order dismissing the application ;

(d) an order remitting to the same or another trustee to prepare an adjustment scheme.

(5) Where the court approves an adjustment scheme, the scheme shall be binding on the debtor and on all the creditors to whom the proceedings were intimated and where the debtor has paid in full or to the extent specified in the scheme the debts of such creditors and the expenses of the proceedings (so far as payable by him) and has fulfilled any other obligation imposed on him by the scheme, the court may, on his application, make an order discharging him and such order shall operate as a complete discharge of all such debts.

Provisions of
schemes.

3.—(1) An adjustment scheme may, for the purpose of the payment in accordance with the scheme, of the debts proved in the proceedings, provide for the realisation in whole or in part of the debtor's property existing at the commencement of the proceedings, or becoming available at any time before his discharge, and for the distribution of the proceeds thereof and of any other sums available for distribution, including such sums as the debtor may be required to pay out of his future income, and may provide that such distribution shall be subject to the supervision of the court.

(2) Without prejudice to the generality of the last foregoing subsection, an adjustment scheme may contain provision for all or any of the following matters—

- (a) for securing the maintenance of the debtor and his family ;
- (b) for excepting from the property to be realised any premises which are used, or would, but for war circumstances be used, as the home of the debtor, and any of the contents thereof ;
- (c) for the composition of debts, the granting of security over any property of the debtor in favour of the creditors, and the management or disposal of the debtor's business ;
- (d) in a case where the debtor carries on business or intends, when circumstances permit, to resume the carrying on of a business suspended owing to war circumstances—
 - (i) for excepting from the property to be realised, the business, any premises used for the business, and other property required for the purposes of the business ;
 - (ii) for the carrying on of the business under the supervision of the trustee ;
- (e) for postponing the payment of the debts or any of them for such period as the court thinks fit ;
- (f) for postponing the realisation for such period as the court thinks fit of property which it would be unreasonable to realise immediately owing to its temporary depreciation in value or for any other sufficient cause ;

- (g) for the modification or termination subject to such conditions, including the payment of damages, as the court thinks fit, of any contract to which the debtor is a party
- (h) for the reduction of any rent, due or to become due by the debtor, so, however, that such rent in respect of any period shall not be reduced below the lettable value for that period of the subjects for which such rent is payable.

(3) Where in pursuance of the last foregoing subsection an adjustment scheme modifies or terminates any contract, the liability of any other person under or in relation to that contract whether as a person jointly bound with the debtor or as a cautioner may be modified or terminated, and save as aforesaid the approval of an adjustment scheme shall not affect the liabilities of any person who is cautioner for, or is jointly bound with, the debtor nor shall a discharge under such scheme release any such person from those liabilities.

(4) Where the debtor is in possession of any goods let under a hire purchase agreement and any part of the price remains unpaid, provision may be made in an adjustment scheme for the vesting of the goods in the debtor either immediately or after the payment of such further instalments as may be specified in the scheme, and where such provision is made, the owner shall be entitled to prove for the balance of the price less any sums required to be paid as aforesaid, but shall not have any other remedy against the debtor or the goods :

Provided no such provision shall be so included unless the sums paid by the debtor in respect of the price amount at least to the value of the goods at the date of the adjustment scheme.

4.—(1) For the purpose of the distribution in pursuance of an adjustment scheme of any sums available for the satisfaction of the proved debts of the debtor, all those debts shall rank equally among themselves. Provisions as to ranking and secured debts.

(2) A creditor holding a security for his debt over any part of the debtor's property—

- (a) may, save as otherwise provided in the scheme, exercise any power vested in him to realise his security and if the sum realised is less than the sum secured, may prove in the adjustment proceedings for the difference ;
or
- (b) may surrender his security and prove for the whole amount secured ; or
- (c) may cause his security to be valued, and if the value is less than the amount secured, may prove for the difference.

Protection
and vesting
orders.

5. The court before which any adjustment proceedings are pending, if it shall deem it expedient to do so, may at any stage make either or both of the following orders—

- (a) an order (hereinafter referred to as a protection order) prohibiting, except with the leave of the court (which may be given subject to such restrictions and conditions as the court thinks fit), the bringing of, or insisting in, any civil proceedings or diligence against the debtor or his property in respect of any provable debt, or the exercise of any such right or remedy as is mentioned in subsection (2) of section one of the Courts (Emergency Powers) (Scotland) Act, 1939 ;
- (b) an order (hereinafter referred to as a vesting order) vesting the debtor's whole property and assets in a trustee, which order shall have the like effect as the act and warrant of confirmation of a trustee in a sequestration.

Power to
compromise
claims.

6. The court before which any adjustment proceedings are pending may approve any compromise or arrangement whether made by the debtor or by the trustee with respect to any claim capable of resulting in a provable debt or any claim affecting any property of the debtor, but no such compromise or arrangement made while the adjustment scheme is in force regarding such claim or property shall be valid without the approval of the court.

Court to have
powers under
Moneylenders
Act.
63 & 64 Vict.
c. 51.
17 & 18 Geo. 5.
c. 21.

7. Where any person whose affairs are the subject of adjustment proceedings has borrowed money from a moneylender, the court may exercise in those proceedings all the powers under section one of the Moneylenders Act, 1900, as extended by section ten and subsection (2) of section thirteen of the Moneylenders Act, 1927, which are exercisable in proceedings for the recovery of money lent by a moneylender, and the powers may be exercised at the instance either of the debtor or of the trustee, notwithstanding any agreement to the contrary and notwithstanding that the time for repayment of the money or any part thereof has not arrived.

Application to
property and
businesses
held on trust.

8.—(1) Where a business is carried on or any property is held in trust for the benefit of any person (hereafter in this section referred to as "the beneficiary"), and the beneficiary is wholly or mainly dependent on the income derived from the business or property, and the court is satisfied that, if the business or property belonged to the beneficiary and he was liable for the debts arising in respect thereof, adjustment proceedings could be brought by him, the court may, subject to such conditions as it thinks fit to impose, allow such proceedings to be brought, on the joint application of the beneficiary and the trustees, for the adjustment and settlement of the affairs of the beneficiary and of the trust.

(2) Where adjustment proceedings are brought by virtue of this section—

- (a) any protection order made in those proceedings shall extend to proceedings, diligence, rights and remedies against the trust property or against the trustees in respect of liabilities incurred in their capacity as such, as well as to proceedings, diligence, rights and remedies against the beneficiary or his property ;
- (b) the powers of the court shall be exercisable in relation to any property held, business carried on, or liabilities incurred, by the trustees in their capacities as such, as well as in relation to any property, business or liabilities of the beneficiary ;
- (c) references in this Act to the debtor shall be construed as references to the beneficiary or to the trustees, according as the court may direct.

9. The court may, on the application of any creditor or of the debtor, revoke or vary any arrangement for the settlement of the debtor's affairs, and may, on the application of any creditor or of the trustee under an adjustment scheme, revoke or vary the scheme, and may direct that any variation of any contract made in pursuance of the scheme shall be deemed never to have had effect or to have ceased to have had effect at such date prior to the revocation or variation of the scheme as the court may specify, and may direct that any such contract shall have effect subject to such consequential modifications as the court may think necessary.

Revocation
and amend-
ment of
arrangements
and adjust-
ment schemes.

10.—(1) Where any debtor, in whose case adjustment proceedings have been commenced, dies before the conclusion of the proceedings, the court may continue the proceedings in relation to the estate of the debtor, if it is satisfied that the persons most likely to benefit thereby are wholly or mainly members of the debtor's family.

Adjustment
proceedings
in relation to
estates of
deceased
debtors.

(2) Where the court continues any adjustment proceedings in relation to the estate of a deceased debtor, this Act and any protection or vesting order or adjustment scheme already made with respect to that debtor shall have effect as if for the references to the debtor there were substituted, where the context requires, references to his personal representative or to the members of the debtor's family for whose benefit the proceedings are being continued, and as if for the references to the debtor's property there were substituted references to his estate, and with such other adaptations and modifications as may be necessary, and the court may give such directions with respect to the exercise of the rights and powers of the personal representative (including any powers to sell any property comprised in the estate) as may be necessary

for the purpose of giving effect to the adjustment scheme, and, in particular, may postpone the vesting or conveyance, or the distribution, of any part of the estate until the end of the adjustment proceedings.

(3) Where the court does not continue any such adjustment proceedings in relation to the estate of a deceased debtor, it shall revoke any protection or vesting order and adjustment scheme made with respect to him and may direct that any variation of any contract made under this Act shall be deemed never to have had effect or to have ceased to have effect at such date prior to the revocation as it may specify and may direct that any such contract shall have effect subject to such consequential modifications as the court thinks necessary, and may give such directions with respect to anything done under the order as it thinks necessary.

(4) Where the court is satisfied in the case of a deceased person, that his affairs could, but for his death, have been made the subject of adjustment proceedings, the court may allow such proceedings to be brought in relation to the estate of the deceased person and subsection (2) of this section shall apply, with any necessary modifications, to proceedings brought under this subsection.

Provisions as
to partner-
ships.

11.—(1) Where the debtor is carrying on business in partnership with others, and no application is made under subsection (5) of this section in respect of the firm, the court may, if it considers that it is in the interest of the debtor and the creditors to do so, allow the debtor to remain a partner in the business, and exclude from the property to be realised under the adjustment scheme any of the debtor's property which in the opinion of the court is required for the purposes of the business; and in that case the liabilities of the firm and any liabilities of the debtor arising out of the contract of partnership shall not be provable debts and the court shall, in settling the terms of the adjustment scheme, have regard to the requirements of the debtor as a member of the firm.

(2) The powers of the court under the last foregoing subsection shall be subject to any term of the contract of partnership providing for the dissolution thereof or the vesting of the debtor's share in the other partners, but nothing done or suffered by the debtor under, or for the purpose of taking advantage of, any provision of this Act shall be a ground for an application to any court for dissolution of the partnership.

(3) If, in any case to which subsection (1) of this section applies, the court does not exercise its powers under that subsection, and the contract of partnership does not provide for the dissolution of the partnership or the vesting of the debtor's share in the other partners, the court shall provide in the adjustment scheme for the dissolution and winding up of the partnership or for the vesting

of the debtor's share in the other partners, on such terms as seem just, and may give such directions as it considers necessary or expedient for that purpose.

(4) Whether or not the partnership is dissolved, the court may give to the debtor such directions as it thinks fit as to the exercise of his rights under the contract of partnership, or may appoint any person to exercise those rights on his behalf :

Provided that nothing in this subsection shall authorise any interference with the conduct of the partnership business or be taken as affecting the terms of the contract of partnership.

(5) Where any persons are carrying on business in partnership and—

(a) both the firm and all the partners are unable to pay their debts or will be unable, after payment of their debts (if any), to meet, as they fall due, any future liabilities in respect of obligations already incurred, or are in such a position that, if they were required to pay their debts and to meet any such future liabilities as they fell due, they would not have sufficient resources to enable them to preserve or recover the business of the firm or in the case of the partners, to make reasonable provision for the future maintenance of themselves and their families ; and

(b) the position of the firm is due to war circumstances ;

an application may be made for the adjustment and settlement of the affairs of the firm under this Act, and any such application shall be taken as an application for the making of a separate adjustment scheme in relation to the firm and to each partner therein, and the references in section one of this Act to the debtor shall be construed as references to the firm or any of the partners, and references in that section and in section nine of this Act to creditors shall be construed as including references to creditors of the firm or of any of the partners.

(6) Where the court does not exercise, in relation to a firm, its powers under this Act for the purpose of enabling the business of the firm to be carried on or resumed, it shall provide in the adjustment scheme for the dissolution and winding up of the partnership, and may give such directions as it considers necessary or expedient for that purpose.

(7) If on an application in respect of a firm it appears to the court that an adjustment scheme cannot or ought not to be made in relation to any partner, and that it is in the interest of the other partners that an order should be made in respect of the firm, the court may order that the share of that partner in the firm shall vest in the other partners on such terms as seem just, and this

section shall have effect accordingly, and, if there is only one other partner, the application shall be treated as an application in respect of that other partner in his own name.

Provisions as
to companies.
19 & 20
Geo. 5. c. 23.

12.—(1) The provisions of this Act shall apply, subject to the provisions of this section, to private companies within the meaning of the Companies Act, 1929, but shall not apply to any other body corporate.

(2) An application shall not be made by a company for the adjustment and settlement of the company's affairs under this Act unless a special resolution within the meaning of the Companies Act, 1929, has been passed by the company resolving that the application be made.

(3) No such application as aforesaid shall be entertained unless the court is satisfied that the principal object of the company is to carry on a business for profit, and that the object of the application is to enable the company to carry on or recover that business ; and the court shall, in considering whether it is practicable and proper to deal with the affairs of a company under this Act, have regard to the constitution and history of the company and the means of the members and officers thereof.

(4) An adjustment scheme made in the case of the company may, in addition to any of the other matters mentioned in this Act, provide for the making of calls upon the contributories of the company.

(5) In relation to a company, this Act shall have effect as if any reference to a petition for sequestration were a reference to a winding-up petition.

(6) No adjustment scheme for the adjustment and settlement of a company's affairs shall be approved under this Act unless the company have assented to the scheme by a special resolution.

Appointment
and remunera-
tion of trustees.

13.—(1) The Secretary of State shall appoint for each area a panel of persons from among whom any trustee to whom a remit is made under section two of this Act in that area shall be selected. The same person may be appointed to the panels for two or more areas.

(2) There shall be paid to any such trustee such remuneration and expenses as the Treasury may determine and such remuneration and expenses shall be defrayed out of moneys provided by Parliament.

(3) In this section the expression " area " means a sheriffdom or any part of a sheriffdom for which in the opinion of the Secretary of State there ought to be a separate panel.

Approval of
voluntary
trust deed.

14. Where, on an application made for the purpose by any person, the court is satisfied that the provisions of paragraph (a) or paragraph (b) of subsection (1) of section one of this Act are, owing to war circumstances, applicable to such person and that

he has executed a voluntary trust deed for behoof of his creditors to which a majority in number and three fourths in value of the creditors have acceded, the court may, if it is of opinion that the trust deed is fair and equitable, approve the deed, and the deed shall thereupon be as binding on all the creditors as if they had acceded thereto.

15. If any person—

Offences.

- (a) knowingly makes any false statement for the purpose of any application to the court under this Act ; or
- (b) after the approval of an adjustment scheme or the making of a protection or vesting order in relation to any debtor, fraudulently conceals, receives or disposes of any part of the debtor's property ;

he shall be liable on conviction on indictment to imprisonment for a term not exceeding two years or on summary conviction to imprisonment for a term not exceeding three months.

16.—(1) The jurisdiction conferred on the court under this Act shall be exercisable in relation to any debtor by the sheriff court within whose jurisdiction the debtor ordinarily resides or carries on business, or, where the debtor is a company, by any court which would have jurisdiction to wind up the company. Provisions as to courts.

(2) An application to the court under this Act shall be deemed not to be a summary application within the meaning of the Sheriff Courts (Scotland) Acts, 1907 and 1913.

17.—(1) Where application is made under subsection (1) or subsection (2) of section one of the Courts (Emergency Powers) (Scotland) Act, 1939 for leave to enforce any decree or exercise any right or remedy against any person, the court to which such application is made, if it is satisfied that an application to any court under this Act relating to such person is pending, shall refuse such leave and, if it is of opinion that the provisions of paragraph (a) or paragraph (b) of subsection (1) of section one of this Act are, owing to war circumstances, applicable to such person, may refuse such leave or give it subject to such restrictions and conditions as it thinks fit. Powers under 2 & 3 Geo. 6. c. 113 to be exercisable in regard to debtors to whom section 1 of this Act applies.

(2) Where a petition for a sequestration has been presented against any debtor or a winding-up petition has been presented against any company on the ground that it is unable to pay its debts, the court before which such petition depends may, if an application to the court relating to such person or company under this Act is pending or if in the opinion of the court, the provisions of paragraph (a) or paragraph (b) of that subsection are, owing to war circumstances applicable to such person or company, dismiss the petition or sist the proceedings thereon for such time and subject to such conditions as the court thinks fit.

Savings.

18. Nothing done or suffered by any person under, or for the purpose of taking advantage of any provisions, of this Act shall be deemed to constitute notour bankruptcy or insolvency or shall disqualify any person from any office for which he would be disqualified under any enactment (including an enactment in a local Act) by bankruptcy or insolvency.

Exemption from stamp duties and court dues.

19.—(1) Where a protection or vesting order is made, or an adjustment scheme is approved, under this Act—

- (a) every deed, conveyance, assignation or other instrument relating solely to property which was the property of the debtor at the date of the protection order or of the approval of the scheme and which, after the execution of the instrument, is or remains his property or the property of a trustee appointed under the order or for the purposes of the scheme ;
- (b) every writ, order, certificate, affidavit, bond or other instrument required for the purposes of the liabilities adjustment proceedings ;

shall be exempt from stamp duties.

(2) No court fees or dues shall be chargeable in respect of any proceedings under this Act.

Application to the Crown.

20. This Act shall, subject to any exceptions or modifications provided for therein, apply in relation to debts and liabilities due to or incurred towards the Crown, property in which the Crown has an interest, and contracts entered into with the Crown, proceedings by the Crown, and the exercise of remedies by the Crown, in like manner as in the case of subjects.

Extent.

21.—(1) This Act shall apply only in a case where, at the date of any application to the court thereunder, the debtor—

- (a) if an individual, ordinarily resides in Scotland, or carries on business in Scotland, or is a member of a firm which carries on business in Scotland ; or
- (b) if a firm or a company, carries on business in Scotland.

For the purposes of this subsection—

- (i) where the principal place of business of the debtor is in England or Northern Ireland, the debtor shall not be deemed to be carrying on business in Scotland ;
- (ii) any debtor who, by reason only of war circumstances, ceased ordinarily to reside in Scotland before the said date, or suspended the carrying on of a business previously carried on in Scotland, shall be deemed still ordinarily to reside, or, as the case may be, to carry on business, in Scotland at the said date.

(2) This Act shall apply to any property of a debtor, whether situated in Scotland or elsewhere, and to any contracts, debts and liabilities of a debtor, whether made or incurred in Scotland or elsewhere :

Provided that the provisions of this Act regarding the variation of contracts relating to heritable property shall be exercised only in relation to property in Scotland and to contracts governed by the law of Scotland.

(3) A protection or vesting order, adjustment scheme and order of discharge made under this Act, and anything done in pursuance of any such scheme or order, shall be as valid and effective in England, Northern Ireland and the Isle of Man as it is in Scotland.

22. The Secretary of State may make rules with regard to the performance by trustees of their functions under this Act. Rules.

23. In this Act, unless the context otherwise requires,— Interpretation

“ adjustment proceedings ” means proceedings on an application to the court under this Act ;

“ business ” includes trade or profession, and also includes, as the context may require, the goodwill acquired by a person in a trade or profession ;

“ the court ” means a court exercising jurisdiction in proceedings under this Act ;

“ the debtor ” means, in relation to any adjustment proceedings, the person to whose affairs the proceedings relate ;

“ hire purchase agreement ” means a contract to which the Hire Purchase and Small Debt (Scotland) Act, 1932, 22 & 23 Geo. 5 applies or would apply if the limitation as to value c. 38. contained in section one of that Act were omitted ;

“ lettable value ” means, in relation to any premises occupied by a debtor and to any period, the rent at which, in the opinion of the court, the premises might reasonably be expected to let or, as the case may be, might reasonably have been expected to let during that period on the same terms and conditions (other than the period of the lease) as those on which the debtor is holding the premises ;

“ provable debt ” means, for the purpose of any adjustment proceedings, any debt or liability of the debtor which would entitle the creditor to vote in a sequestration of the debtor's estate awarded at the date of the commencement of the proceedings ;

“ war circumstances ” means circumstances directly or indirectly attributable to any war in which His Majesty may be engaged.

Short title
and duration.

24.—(1) This Act may be cited as the Liabilities (War-Time Adjustment) (Scotland) Act, 1945.

(2) This Act shall expire one year after the date when the Courts (Emergency Powers) (Scotland) Acts, 1939 and 1944 cease to be in force :

Provided that this Act shall remain in force in relation to any adjustment proceedings commenced or any adjustment scheme approved before the expiry of this said year.

CHAPTER 30.

An Act to make temporary provision for the government
of Burma. [15th June 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Extension and
amendment of
Proclamation
under s. 139
of the
Government
of Burma
Act, 1935.
26 Geo. 5 &
1 Edw. 8. c. 3.

1.—(1) Notwithstanding anything in the proviso to subsection (3) of section one hundred and thirty-nine of the Government of Burma Act, 1935, the Proclamation under that section made on the tenth day of December, nineteen hundred and forty-two, and any Proclamation made after the passing of this Act varying that Proclamation shall not cease to be in force by reason only that it has been in force for three years, and any such Proclamation which would, but for this subsection, cease to be in force for that reason shall, if the resolutions in that behalf required by the said proviso are from time to time passed by both Houses of Parliament, continue in force, unless revoked, until the ninth day of December, nineteen hundred and forty-eight.

(2) Subject to the provisions of this subsection, a Proclamation under the said section one hundred and thirty-nine varying the said Proclamation made on the tenth day of December, nineteen hundred and forty-two, may, notwithstanding anything in the said Act, make provision for the constitution of such councils and other bodies or authorities as may be specified in the Proclamation, for associating, in such manner as may be so specified, any such council, body or authority with the Governor in the exercise of his functions and regulating its powers, duties and procedure, and for any matters incidental to any of the matters aforesaid :

Provided that the powers conferred by this subsection shall only be exercisable if His Majesty by Order in Council authorises the exercise thereof and subject to such conditions and restrictions